

Court No. - 37

Case :- WRIT - C No. - 18954 of 2014

Petitioner :- Satendra Singh

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Sudhakar Singh

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Vineet Saran, J.

Hon'ble Attau Rahman Masoodi, J.

Heard learned counsel for the petitioner as well as Sri Baleshwar Chaturvedi, learned counsel appearing for the contesting respondents and the learned Standing Counsel appearing for the State respondents and have perused the record.

By means of this writ petition, the petitioner has challenged the recovery notice dated 29.8.2013. Against the same recovery notice, the petitioner had earlier filed Writ Petition No. 66737 of 2013, which was disposed of by this Court on 6.12.2013 with the direction that the petitioner may file an appropriate application under Clause 6.14 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer.

Since the petitioner had already challenged the same order earlier and had been granted an order, merely because his application has not been decided by the Executive Engineer, a second writ petition would not be maintainable.

This writ petition is, accordingly, dismissed. No order as to costs.

Order Date :- 1.4.2014

p.s.

(Attau Rahman Masoodi, J.)

(Vineet Saran, J.)